

Smt. Manjula. M @ Lavanya vs Yogeesh. J @ Vedamurthy S/O Jayanna on 4 May, 2023

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KABC050014942019

Presented on : 08-02-2019

Registered on : 08-02-2019

Decided on : 04-05-2023

Duration : 4 years, 2 months, 24 days

IN THE COURT OF THE METROPOLITAN MAGISTRATE

TRAFFIC COURT- III, BENGALURU.

DATED THIS THE 04 th DAY OF MAY 2023

Present: Smt. Kusuma. V.

Metropolitan Magistrate,

Traffic Court-III, Bengaluru.

CrI. Misc. No.25/2019

Petitioner :

Smt. Manjula. M @ Lavanya, W/o Yogeesh.

B.J., D/o Manjunath. G., 26 Yrs, R/at C/o

Anjinappa Lakshamma, 1st Cross, Ward

No.44, Mariyappana Palya, Near

Shanimahathma Temple, Someshwar

Nagar, Yeshwanthapura, Bengaluru-22.

(By Sri. HMC, Adv.)

V/s.

Respondents : 1. Yogeesh. J @ Vedamurthy S/o Jayanna.

B.M., 33 Yrs.

2. Jayanna. B.M., 63 Yrs. (Ex-parte)

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Both r/at Bendekere Village, Banavara

Hobli, Arasikere Taluk, Hassan District.

(By Sri. N.G.R Adv.)

ORDERS ON MAIN PETITION

1. This is petition filed by the petitioner under Sec. 12

of Protection Of Women From Domestic Violence Act, 2005.

2. By filing this petition the petitioner has sought various reliefs fallen U/sec. 18, 19, 20 and 22 of PWDV Act.

3. The format as required under the DV Act is duly filled up and the same is presented by the petitioner along with the affidavit. In the required format, the detail of the petitioners' case cannot be made out, the same can be gone through in the evidence let in by the petitioner. Hence, before considering the reliefs sought for, it becomes just and necessary to look into the case of the petitioners.

4. The case of the petitioner and respondent no.1 got married on 08.02.2015 at Sri. Jenukal Siddeswaraswamy Kalyana Mantapa, Yadapura, Arasikere Taluk, Hassan

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District as per Hindu rites and customs. It was an arranged marriage only after the consent taken place between the members of both the families.

5. The petitioner submits that the respondent no.1 represented that, he has been working in Bengaluru and getting salary of Rs.23,000/- per month. At the time, of marriage negotiations the respondents demanded Rs. 2,00,000/- cash 200 gm gold, a watch and one fair suite and all expenses of the marriage from the side of the family of the petitioner and on negotiation the petitioner parents have given him Rs.1,00,000/- cash, neck chain, 2 rings, bracelet worth of 150 gms gold ornaments and gold chain,

ear rings, two rings of 150 gms at the time of marriage and the marriage expenses also born by petitioner parents. After the marriage, the petitioner and the respondent no.1 were started their matrimonial life in a rented house at Dasarahalli, Bengaluru. Even to give an advance to hire the said house, the respondents demanded and taken Rs.40,000/- from petitioner parents and household things

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also purchased and given by petitioner parents. Since from the marriage the respondent no.1 not going to work properly and not looking after the family and when the petitioner asked the same, the respondent no.1 always quarreling with the petitioner for a silly reasons of food is not good and cloths and utensils are not washed properly and also by assault taken all her gold ornaments forcibly and took the amount by pledging the same thereafter demanding her to bring the money for his expenses from her parents. Days went on, the respondent no.1 mentally become abnormal and always quarreling with the petitioner and went out of the matrimonial home and after several requests of the petitioner and his parents coming to the matrimonial house.

6. The petitioner further submits that the respondent no.1 on the persuasion of respondent no.2 and mother everyday quarreling with the petitioner suspecting her character even comparing with her brother Dinesh. N.

Though the petitioner was one month pregnant, the

respondents not caring the petitioner and not taking her to

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hospital stating that he has no money as he has not been going to work and earning, when the petitioner asked him why not he going to work, the respondent no.1 keeping the same in mind wake up in the midnight and demanding her to give money or bring the money, sites or property from her parents for starting business and to purchase bike or else go to work and earn money and give it him if no compelling her to go out of the matrimonial house by writing in the paper stating that there is no relationship between them. Which leads the petitioner to mental harassment and caused her pregnancy disturbed and she got stomach pain, even he has no money to take her to hospital. When the petitioner was 6 months pregnant, the respondents not even taken care hear properly and he along with his parents quarreled with the petitioner demanding remaining dowry amount. However, on 22.2.2016 the petitioner given birth to male child by operation, but the respondent not comes to see the child and to sign the hospital record.

7. The petitioner further submits that the r, no.1 instead

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joining the petitioner on 1.8.2017 given a notice to come

and join by making false allegations. In turn the respondent

also given reply dtd: 1.9.2017 stating that she is ready to lead matrimonial life if he come and taken her to matrimonial house. But, till date the respondent no.1 has not come to bring back the petitioner and though the petitioner and her parents themselves called him to join the petitioner. The petitioner without having any means taken shelter along with child residing with her parnets.

8. The petitioner further submits that the influence of the parents, the respondent tortured the petitioner and her child both mentally and physically. Right from the day of the marriage took place, the greedy respondent started giving trouble harassment, mental agony etc., It is only with sole intention to get money and materials from the petitioner. The petitioner is subjected to all sorts of cruelty both mentally and physically. For every petty incident, the respondent used to beat and assault the petitioner now and then.

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9. The respondent being husband of the petitioner and being responsible to take care of his wife and children, he is always depends on the money of the petitioner and her parents. Now the petitioner is not able to maintain herself, apart from that made her to discharge or satisfy the unlawful demand of dowry etc., in the said situation petitioner is filing the above petition for relief sought herein for protection, residence, payment of money from

respondents for her subsistence. Hence this petition.

10. On service of notice, the respondent no.1 has appeared before court and through his counsel by filing vakalath. After service of notice, the respondent no.2 was absent and he placed ex-parte. The respondent no.1 has filed objections by denying all allegations made by the petitioner against the respondent and further stated that the marriage of petitioner and respondent no.1 was solemnized as per Hindu customs and rites on 8.2.2015 at Sri. Jenukal Siddeswaraswamy Kalyana Mantampa, Yadapura, Arasikere Taluk. The marriage is arranged

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marriage, at the instance of parents and relatives. After the marriage, the petitioner and respondent no.1 have started their matrimonial life at a respondent's house at Bengaluru.

11. After the marriage, the petitioner and the respondent no.1 started living together in a rented house at Dasarahalli, Bengaluru, after marriage the petitioner behavior was not good and she was not talking to respondent lovingly, the petitioner and his family members have treated the respondent as a servant and abused herein filthy language at the instance of friends and relatives the petitioner and his family members was harassed mentally and physically.

12. The respondent no.1 submits that taking undue

advantage of the respondent no.1 simplicity and patience, the petitioner used to behave in rude manner and started disrespecting to the respondents. In view of the mental harassment inflicted by the petitioner and his family members. The respondent informed the changed behavior of the petitioner to her parents and also the parents of the

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petitioner in this regard there was a panchayath held at the instance of elders in family of petitioner and respondent. After the marriage the petitioner did not co-operate to stay with the respondent. The petitioner without reasonable cause and sufficient reasons neglected and deserted the company at the respondent. The respondent is an innocent person. The respondent has taken utmost care of the petitioner. The respondent herein firmly believes in the institution of marriage. The respondent is ready and willing to continue the marital life with the petitioner. The respondent no.1 has filed MC no. 71/2017 against the petitioner seeking restitution of conjugal rights on the file of the Senior Civil Judge, and JMFC at Arsikere same is pending. The petitioner has deserted the respondent without having any valid reason. Since after the marriage though respondent looking after her very well. With lot of love and affection the petitioner is only refused to live with the respondent and she has left the matrimonial house.

13.The respondent no.1 submits that he is doing

agriculture coolie work and he has no sufficient income to lead the life and he residing at Bendekere Village, Arasikere taluk and he further submitted that he live along with age old parents and both are suffering from age old illness, the mother of the respondent is suffering from various illness, cardiac illness, hemorrhagic transformation and taken treatment in several hospital and later she was admitted in Victoria hospital at Bengaluru for some days after discharged from the hospital and taken follow up treatment every month in Victoria hospital. The petitioner has sufficient income to lead the life, she is working in private company and getting good salary, therefore the respondent no.1 pay the monitory reliefs does not arise. Hence, prays to dismiss the petition.

14. Keeping in mind the evidence given by the petitioner it becomes just and necessary to look into whether the orders required by the petitioner various reliefs which are fallen under Sec. 18, 19, 20 and 22 of DV Act can be granted.

15. The petitioner in support of her case has got examined herself as PW.1 and got exhibited documents as Exs.P.1 to 9. Ex.P.1 is marriage invitation, Ex.P.2 is birth certificate, Ex.P.3 is photos, Ex.P.4 is copy of legal notice,

Ex.P.5 is adhar card, Ex.P.6 is RTC extracts, Ex.P.7 is admission receipt, Ex.P.8 is prescriptions and Ex.P.9 is CD.

16. Heard arguments from counsel for the petitioner.

Perused the documents.

17. The points that arise for consideration are:-

1. Whether the petitioner is entitled for the Protection Orders as contemplated under Sec.18 of DV Act?
2. Whether the petitioner is entitled for residential order relief as contemplated under Sec.19 of DV Act?
3. Whether the petitioner is entitled for monetary relief as contemplated under Sec.20 of DV Act?
4. Whether the petitioner is entitled for compensation relief as contemplated under Sec.22 of DV Act?

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5. What order?

18. The findings to the above points are as follows:-

Point No.1 - In the affirmative
Point Nos.2 to 4 - Partly in the affirmative
Point No.5 - As per Final Order, for the following:-

R E A S O N S

19. Reasoning on Point No.1 to 3: Since these points are interconnected with each other and requires common appreciation of evidence, hence to avoid repetition of facts all the points are taken together for common consideration.

20. The case of the petitioner is that the respondent

no.1 have given mental and physical harassment by demanding additional dowry and for grant of permanent accommodation. The petitioner has sought for various reliefs which are fallen U/s 18, 19, 20 and 22 of DV Act.

21. As per the provisions of Sec.18 of DV Act. As per this section, the Magistrate may, after giving the petitioner and the respondent an opportunity of being heard and on

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being prima-facie satisfied that domestic violence has taken place or is likely to take place, pass a protection order in favour of the petitioner and prohibit the respondent from committing such domestic violence.

22. In the affidavit filed by the petitioner along with petition she has stated that the averments made in the petition are all true and correct. The petitioner has stated that she was subjected to verbal and emotional abuse and she was insulted for not bringing additional dowry and she was also subjected to economic violence by not providing money for maintaining herself and her child and the respondent no. 1 was not providing food, cloths, for herself and her child. The petitioner was forced to leave the matrimonial house by the respondent no.1 by demanding to bring additional dowry, failing which they had threatened the petitioner with dire consequences.

23. Further on perusal of the petition, it can be seen

that the petitioner and respondents were living in shared

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household at that time both respondents have harassed the petitioner physically and mentally by not taking care of her and her child. On the other hand, the respondent no.1 has also filed objections by denying the allegations of the petitioner leveled against him. Further he deposed that the petitioner herself caused mentally and physically by abusing with filthy language before friends and relatives of the petitioner and his family members. To this effect, the respondent no.1 has not lead his evidence and also has not produced any documents to show that the petitioner and her family members have harassed the respondent no.1 mentally and physically. Thereafter the petitioner left the matrimonial home on 1.8.2017, since she was living at the mercy of her parents.

24. No doubt, as per Sec.3 of DV Act if at all the respondent commits any domestic violence as above pleaded is fully established by the petitioner then definitely the petitioner will be entitled for an order of protection under Sec.18 and for residential orders as per Sec.18 of DV Act and

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mandatory reliefs as contemplated under Sec.20 of the Act.

25. As per Sec.19 of DV Act while disposing an application under Sec.12(1) PWDV Act, a Magistrate, may on

being satisfied that the domestic violence has taken place can pass residence order restraining the respondent from dispossessing or in any other manner disturbing the possession of the petitioner from the shared household.

26. In the case on hand, it is the case of the petitioner that she is residing along with the respondent no.1 after the marriage in the shared house, wherein the respondent no.1 and respondent no.2 has given mental and physical torture to the petitioner. Then, the petitioner and respondent no.1 lived in shared house. For the reason of mental and physical harassment given by the respondents, the petitioner has left the matrimonial home and residing with her parents. On the basis of mental and physical torture given by the respondents, the petitioner herself has left the matrimonial home. Therefore, the question of granting residential orders as per Sec.19 of DV Act can be considered in favour of the

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petitioner.

27. With regard to the reliefs as contemplated under Sec.18 i.e, the protection orders as well as regarding the possession of mandatory reliefs as contemplated under Sec.20, it becomes just and necessary for the petitioner to establish the same.

28. The fact that both petitioner and the respondent no.1 are wife and husband is not in dispute. When the petitioner has let in evidence she has stated that

subsequent to marriage, she was residing with the respondents in the shared household. There the respondents have harassed the petitioner mentally and physically, no any option, the petitioner also left the matrimonial home with her child and leaving with her parents.

29. While deposing before the court the petitioner has stated that she has also contended that the respondents have used to harass her by demanding more dowry.

In

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support of her case the petitioner has not furnished any medical document to show that the respondents have caused physical harassment. But, on perusal of the pleadings as well as chief affidavit of PW.1, it is clear that the respondents have caused domestic violence against the petitioner. On perusal of the same, it is clear that there was domestic violence against the petitioner caused by the respondent no.1.

30. On the other hand, after service of notice, the respondent no.1 has appeared before the court by filing vakalath from his counsel, but the respondent no.2 was placed ex-parte. The respondent no.1 had filed objections to the main petition by denying all averments pleaded by the petitioner in her petition.

31. The petitioner examined herself as PW-1 by filing affidavit of examination-in-chief. In the said examination-in-chief, she reiterated the averments of the petition. Except, filing objections to the main petition, the counsel for the

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respondent no.1 had not appeared before the court and not cross examined PW.1. Further, he has not appeared before the court to lead oral and documentary evidence on his behalf. Hence, sole testimony of the petitioner is unchallenged by the respondent no.1 and it is believable one.

32. Further, she stated that now she is not working and she is not having any source of income. On going through the oral and documentary evidence of petitioner and respondent no.1, it is clear that due to the dispute in marital relation between respondent no.1 and the petitioner, the petitioner is now residing separately with her parents apart from respondent no.1.

33. On perusal of the entire pleadings and documents and oral testimony of the petitioner, it is crystal clear that the petitioner is legally wedded wife of respondent no.1 and thereafter he gave harassment mentally and physically to the petitioner.

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34. It is undisputed that on the date of filing the

petitioner was legal wedded wife of respondent no.1.

Further, the respondent no.1 in his objections stated that she is having sufficient income to lead her life and she is working company and getting good salary. To this effect, there is no materials on record to show that now the petitioner is earning and has sufficient means to maintain herself and her child.

35. Now coming to crucial aspect about the income of respondent no.1. On perusal of the affidavit of assets and liabilities of the petitioner it appears that the petitioner has no source of income, on the other hand is working as an Engineer and getting monthly income of Rs.18,427/-per month. Further, he is also having immovable properties at Bendekere village, Arasikere taluk, Hassan district. But, in the objections the respondent no.1 stated that he is doing agricultural coolie. To show the income of the respondent no.1, the petitioner has not furnished any documents. But, she furnished RTC extracts 4 in numbers as per Ex.P.6 and

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having immovable properties in the name of respondent no.2 who is none other than father of respondent no.1. But, in the absence of material documents, it is bounden duty of the respondent no.1 to took care of his wife and child.

36. In the petition the petitioner has sought for monetary relief total of Rs.25,000/- per month to the

petitioner and her child. In the affidavit of assets and liabilities the petitioner has mentioned the monthly income of the respondent no.1 of Rs.18,427/-. In this case, the respondent no.1 has appeared before the court and filed his objections to the main petition. But the respondent no.1 has not cross examined Pw.1 and he has not lead oral and documentary evidence on his behalf. Therefore, the contention of the petitioner by sworn by way of affidavit are believable one.

37. Thus taking into consideration the income of the respondent no.1, it is not justified for the petitioner to seek monthly maintenance of Rs.25,000/- to the petitioner and

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her child. But as the respondent no.1 has not provided any maintenance to the petitioner and her child and looking to the facts and circumstances of the case and also the case of the respondent no.1, it is still the duty of the respondent no.1 to provide monthly maintenance to the petitioner. Looking to the income of the respondent no.1, if an amount of Rs. 10,000/- per month for livelihood, medical expenses and including rent to be paid by the respondent no.1 to the petitioner and her child, then it would definitely meet the ends of justice to both the parties.

38. On going through entire materials on record, the petitioner has established her case i.e., the respondent no.1

has willfully neglected the petitioner to maintain her and her child and also caused Domestic Violence against the petitioner.

39. The petitioner in her petition claimed several reliefs. On perusal of the materials produced on record, the both parties have not obtained divorce from competent court of

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law. Therefore the protection orders as per section 18 of the said Act does arise. For the entitlement of the above said all reliefs as prayed in the petition the petitioner except pleadings with regard to the Domestic Violence by the respondent no.1 and willfully neglected by the respondent no.1 to maintain the petitioner.

40. Further, so, in the presence of sufficient materials the petitioner is entitled for the relief of Rs.10,000/- monthly maintenance during the lifetime of petitioner or till the petitioner remarries. Further, being a father the respondent no.1 has to pay monthly maintenance of Rs.4,000/- to his child for his educational expenses till completion of his education.

41. Further, so, in the presence of sufficient materials the petitioner is entitled for the relief as contemplated U/s 22 of the Domestic Violence Act. Consequently, respondent no.1 is to pay the compensation of Rs.2,00,000/- to the

petitioner and her child. Hence, this court answer these

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point no.1 in the affirmative, Point nos.2 to 4 are partly
in the affirmative.

42. Point No.5: In view of the findings on the above
point nos.1 to 4 and the reasons stated therein, this court
proceed to pass the following: -

ORDER

The petition filed by the petitioner U/sec. 12 of the Protection of Women from Domestic Violence Act, 2005 is hereby partly allowed.

The respondents are hereby directed to restrained from causing any type of domestic violence against the petitioner and her child.

Further, the respondent no.1 is hereby directed to pay the maintenance of Rs. 10,000/- (Rupees Ten Thousand only) per month to the petitioner for her livelihood, for medical expenses and for rent from the date of this order during her lifetime or till the petitioner enters into remarriage as the case may be.

C.Misc.25/2019 Further, the respondent no.1 is hereby directed to pay maintenance of Rs.4,000/- per month to the minor child for his educational expenses from the date of this order till completion of education.

Further, the respondent no.1 is hereby is directed to pay compensation of Rs.2,00,000/- to the petitioner within three months from the date of this order.

Office is directed to issue free copy of the Judgement to the petitioner.

(Dictated to the stenographer directly on computer, corrected and then pronounced by me in the open court on this the 04 th day of May 2023).

(Kusuma. V) MMTC-III, Bengaluru.

ANNEXURE List of witnesses examined for Petitioner:-

PW-1 Manjula. M @ Lavanya List of documents marked for Petitioner:

Ex.P.1 Marriage Invitation Ex.P.2 Birth certificate Ex.P.3 Photos Ex.P.4 Copy of legal notice Ex.P.5 Adhar card C.Misc.25/2019 Ex.P.6 RTC extracts Ex.P.7 Admission receipt Ex.P.8 Prescription Ex.P.9 CD List of witnesses examined for Respondent:-

NIL List of documents marked for Respondent:

NIL M.M.T.C-III, Bengaluru.